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Tentative Ruling

Re: **Mohammed v. Fresno 62 Investment, LLC et al.**
Superior Court Case No. 23CECG04542

Hearing Date: August 6, 2026 (Dept. 502)

Motion: By Defendant Fresno Property Management, Corp. to
Enforce Settlement

Tentative Ruling:

To deny as moot. (Code Civ. Proc., § 664.6.)

Explanation:

Defendant Fresno Property Management, Corp. ("Defendant") seeks to enforce a settlement entered with plaintiff Raj Mohammed ("Plaintiff"). However, the terms of the settlement provide that the matter stay active until the settlement is completed. (Hoppe Decl., ¶ 3, Ex. B, ¶ 10.) On June 15, 2026, and as noted on reply, the matter as to Defendant was dismissed. On reply, Defendant both concedes that the present motion is now moot, but also appears to seek enforcement of the settlement.

From the terms of the settlement, the entry of a dismissal of Defendant suggests that Plaintiff believes the matter is concluded. However, on July 29, 2026, Plaintiff filed an untimely opposition. The court exercises discretion and considers the untimely filing. (Cal. Rules of Ct., rule 3.1300(d).) Nothing in the opposition challenges the fact that on June 15, 2026, Plaintiff voluntarily dismissed Defendant from this action. Rather the opposition appears to state legal theories as to avoiding the settlement agreement, which do not affect the above singular fact. The motion is denied as moot. The request for attorney fees is denied as Plaintiff voluntarily dismissed the action as to Defendant.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: img on 8-4-26
(Judge's initials) (Date)

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Tentative Ruling

Re: ***Harding v. Peters***
Superior Court Case No. 25CECG05824

Hearing Date: August 6, 2026 (Dept. 502)

Motion: By Defendant Lurline Peters on Demurrer to Complaint

Tentative Ruling:

To overrule as moot. (Code Civ. Proc., § 472, subd. (a).)

Explanation:

A party may amend its pleading any time after a demurrer or motion to strike is filed but before the demurrer or motion to strike is heard if the amended pleading is filed and served no later than the date for filing an opposition. (Code Civ. Proc., § 472, subd. (a).) Here, plaintiff Joseph Harding timely filed a first amended complaint on July 24, 2026 in lieu of an opposition to the demurrer filed by defendant Lurline Peters. The matter is now mooted by a superseding pleading, and the demurrer is overruled.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

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